

Court No. - 2

Case :- WRIT - C No. - 8095 of 2022

Petitioner :- Vijai Kumar Singh

Respondent :- State Of U.P. Thru. Prin. Secy. Energy Deptt.
Civil Sectt. Up. Lko. And 3 Others

Counsel for Petitioner :- Vashu Deo Mishra

Counsel for Respondent :- C.S.C.,Aprajita Bansal,Neerav
Chitravanshi

Hon'ble Devendra Kumar Upadhyaya,J.

Hon'ble Saurabh Lavania,J.

Heard learned counsel for the petitioner and Ms. Aprajita Bansal, learned counsel representing the Mandhyanchal Vidyut Vitran Nigam Limited.

Under challenge in this petition is a provisional assessment made on 06.09.2022. Various grounds have been raised by the learned counsel for the petitioner challenging the said provisional assessment and simultaneously a prayer has been made for issuing direction to the respondent No.4 to decide his application dated 10.09.2022 which is said to have served upon him on 12.09.2022.

Under the scheme of U.P. Electricity Supply Code, once any provisional assessment is made, the consumer is required to file his objection/reply and it is only after the final assessment after consideration of the reply of the consumer that final determination of the dues, if any, has to be made.

At present no decision regarding final assessment of the dues has been made by the respondents. Accordingly, we do not find any occasion to quash the provisional assessment notice dated 06.09.2022.

We, thus, **dispose of** this writ petition with the direction to the Executive Engineer concerned to take decision in respect of final assessment pursuant to the provisional assessment notice dated 06.09.2022 only after considering the application dated 10.09.2022 said to have been submitted by the petitioner treating the same to be his reply/explanation to the provisional assessment notice. The reply dated 10.09.2022 has been annexed as Annexure No.7 to the writ petition.

The decision under this order shall be taken as expeditiously as possible, say, within a period of six weeks from the date of production of certified copy of this order.

Order Date :- 18.11.2022/Sanjay